

Stereo HCJDA-38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Appeal No. 67344 of 2022
(Muhammad Azam and another versus The State and another)

&
Crl. Revision No. 60054 of 2022
(Mukhtar Ahmad versus Muhammad Azam and 2 others)

JUDGMENT

Dates of hearing	07-05-2026, 12-05-2026, 20-05-2026 and 03-06-2026
Appellants by:	M/s Ch. Muhammad Lehrasib Khan Gondal and Ramzan Khan Dhudhi, Advocates
State by:	Mr. Muhammad Naveed Umar Bhatti, Deputy Prosecutor General
Complainant by:	M/s Rai Bashir Ahmad, Syed Kashif Husnain Sherazi and Rai Usman Ahmad, Advocates
Amicus Curiae:	Mr. Muhammad Talha Mushtaq, Advocate

Muhammad Tariq Nadeem. J:- Muhammad Azam and Azmat Naeem appellants along with Umar Hayat, Muhammad Aslam, Mst. Kaneez Bibi, Mst. Shahnaz Bibi, Muhammad Adnan @ Mani, Irfan Mushtaq and Yasir co-accused, were tried by learned Sessions Judge, Mandi Bahauddin, in a private complaint bearing Sessions Case No.96 of 2019 and Sessions Trial No.19 of 2021, for the offences under sections 302, 324, 337F(iii), 148, 149 PPC, Police Station Malakwal, District Mandi Bahauddin, and after conclusion of trial in the said case, *vide* judgment dated 27.06.2022, the trial court while acquitting Umar Hayat, Muhammad Aslam, Mst. Kaneez Bibi, Mst. Shahnaz Bibi, Muhammad Adnan @ Mani, Irfan Mushtaq and Yasir co-accused, convicted Muhammad Azam and Azmat Naeem appellants **under Section 302(b) PPC** and sentenced them to **imprisonment for life on two counts** each for committing the murder of Muhammad Aslam and Shahid Imran (deceased) with the direction to pay the sum of **Rs.10,00,000/-** for each deceased as compensation under Section 544-A, Cr.P.C. to be paid to the legal heirs of both the deceased or in default thereof, to further undergo simple imprisonment for a period of **six months** each. They were further convicted **under Section 324 PPC** and

sentenced to undergo rigorous imprisonment for 10-years each along with fine of **Rs.2,00,000/-** each or in default thereof, to further undergo simple imprisonment for a period of **six months** each. They were also convicted **under Section 337F(iii) PPC** and sentenced to undergo rigorous imprisonment for 03-years each with the direction to pay Daman in the sum of **Rs.2,00,000/-** each to be paid to the injured Mst. Bushra Bibi (PW.3) and they shall remain in jail till the payment of Daman amount. However, all the sentences of imprisonment awarded to the appellants were ordered to run concurrently and the benefit of section 382-B, Cr.P.C. was also extended to them.

2. Aggrieved by the judgment of trial court, Muhammad Azam and Azmat Naeem appellants have filed the titled criminal appeal before this Court whereas Mukhtar Ahmad petitioner/complainant has filed a criminal revision for enhancement of sentences of Muhammad Azam and Azmat Naeem respondents/convicts. Since common questions of law and facts are involved, therefore, above mentioned matters are being decided together by means of this single judgment.

3. Brief facts of the case as narrated by Mukhtar Ahmad complainant (PW.1) in private complaint (Exh.PC) are that he was a resident of Choat Dheeran, Tehsil Malakwal and was an agriculturist by profession, whose brother-in-law (sister's husband), Shahid Imran son of Mukhtar Ahmed, caste Awan, resident of Kathiala Khurd, used to work abroad in Saudi Arabia for labour/employment and since the residence of the complainant's brother-in-law, Shahid Imran, and his uncle Muhammad Azam son of Jan Muhammad, resident of Kathiala Khurd, was situated within the same boundary wall, the said Muhammad Azam used to harass the complainant's sister, Mst. Bushra Bibi, on daily basis. A few days prior to the incident, the complainant's brother-in-law, Shahid Imran, returned to his home in Pakistan from Saudi Arabia and intended to construct a partition wall between his residence and the residence of Muhammad Azam, upon which Muhammad Azam engaged in a verbal altercation with Shahid Imran and restrained him from constructing the wall and knowing that Shahid Imran would proceed with constructing the wall, Muhammad Azam, with mutual consultation and connivance, seated the accused persons armed with

firearms inside a room, a fact which was not known to anyone. The complainant along with Nazir Ahmed son of Bashir Ahmed and Ghulam Haider son of Sher Muhammad, residents of Choat Dheeran, were present there for the purpose of reconciliation and at about 9:30 a.m. while the complainant's brother-in-law, Shahid Imran, was busy constructing the wall, the accused persons came out of the room in the meanwhile, whereupon the said Muhammad Azam raised a *lalkara* to teach Shahid Imran a lesson for constructing the wall and simultaneously fired from his weapon which hit Shahid Imran on the chest, below the left nipple while the said Azmat fired from his weapon which hit Shahid Imran on the left side of his abdomen. When Mst. Bushra Bibi stepped forward to rescue him, Muhammad Azam fired from his weapon which hit Mst. Bushra Bibi near her left breast, the said Azmat fired from his weapon which hit Mst. Bushra Bibi on her left flank and Umar Hayat fired from his weapon which hit Shahid Imran on the left side of his back, causing both Shahid Imran and Mst. Bushra Bibi to sustain injuries and fall to the ground. Muhammad Aslam son of Sher Muhammad, caste Gondal, resident of Choat Dheeran, originally from Bosal, who was also the complainant's brother-in-law, had just reached near the gate to enter Shahid Imran's house, when Umar Hayat fired from his weapon which hit Muhammad Aslam on the left flank, Atif alias Jurnal fired from his weapon which hit Muhammad Aslam on his left flank and Azmat fired from his weapon which hit Muhammad Aslam on the left side of his flank while the other accused persons kept their weapons pointed and kept raising *lalkaras* that if anyone came near, they would meet the same fate.

Motive behind the incident was the dispute over the construction of wall and the accused persons fled from the spot while firing and raising *lalkaras*, resulting in Shahid Imran and Muhammad Aslam succumbing to their injuries and dying on the spot whereas Mst. Bushra Bibi, in a severely injured condition, was shifted through Rescue 1122 to THQ Hospital Malakwal for medical treatment

The complainant submitted an application before the police at the spot, upon which FIR No.13 of 2019 was registered at Police Station Malakwal and Mst. Bushra Bibi was medically examined at THQ Hospital

Malakwal from where she was referred to DHQ Hospital Mandi Bahauddin. Post-mortem examinations of the deceased persons were also conducted at THQ Hospital Malakwal. The complainant nominated accused namely Aslam, Mst. Kaneez Bibi and Mst. Shehnaz Bibi on the same day through a separate application, but during the investigation, the investigating officer of the case, in collusion with the accused persons, declared Atif, Imran Mushtaq, Basharat Ahmed and Yasir Naveed as innocent, thereby denying justice to the complainant, due to which the necessity of filing private complaint (Exh.PC) had arisen.

4. After recording cursory evidence and hearing the arguments from complainant side, the appellants and their co-accused were summoned by the trial court to face trial in the private complaint. On indictment, the accused pleaded not guilty and claimed trial. In order to bring home the guilt of the accused, the prosecution got examined five witnesses whereas the trial court also recorded the statements of nine persons as court witnesses. The detail of the evidence from prosecution's side is duly mentioned in Paragraphs No.1 to 3 of the judgment under attack, which, after extraction, is reproduced hereunder for the purpose of facilitation:-

Pw-1, Mukhtar Ahmed, complainant/eye-witness, who got exhibited application **Ex.P-A**, recovery memo **Ex.P-B** of blood stained clothes of Mst. Bushra Bibi i.e Qameez **P-1** & Shalwar **P-2** and private complaint **Ex.P-C**.

Pw-2, Nazir Ahmed, eye-witness, who got exhibited recovery memos **Ex.P-D**, **Ex.P-E** & **Ex.P-F** of collection blood stained earth of Shahid Imran, Muhammad Aslam and Mst. Bushra Bibi, recovery memo **Ex.P-G** of 12 crime empties of rifle 44 bore, pistol 30 bore & 12 bore gun **P-3/1-12** and recovery memo **Ex.P-H** of Kassi **P-4** & 05 Bricks **P-5/1-5**.

Pw-3, Mst. Bushra Bibi, injured eye-witness.

Pw-4, Muhammad Riaz, who identified dead bodies of deceased Shahid Imran and Muhammad Aslam, who got exhibited recovery memo **Ex.P-J** of last worn clothes of deceased Shahid Imran i.e Qameez **P-6**, Shalwar **P-7** & Vest **P-8** and recovery memo **Ex.P-K** of last worn clothes of deceased Muhammad Aslam i.e Qameez **P-9**, Shalwar **P-10**, Garam Chadar **P-12** and Cap **P-13**.

Pw-5, Mukhtar Ahmed (S/O Bashir Ahmed), recovery witness, who got exhibited recovery memo **Ex.P-L** of 12 bore gun bearing No. 12470 **P-14** and Jhola **P-15** alongwith 05 live rounds **P-16/1-5** got recovered by accused Muhammad Azam, recovery memo **Ex.P-M** of

rifle 44 bore **P-17** alongwith 04 live rounds **P-18/1-4** got recovered by accused Azmat Naeem and recovery memo **Ex.P-N** of pistol 30 bore **P-19** alongwith 03 live rounds **P-20/1-3** got recovered by accused Umar Hayat.

2. The following witnesses were recorded as Cws:-

Cw-1, Ejaz Ahmed ASI, Scriber of FIR **Ex.Cw-1/A**.

Cw-2, Gulzar Ahmed, draftsman, who got exhibited scaled site plan **Ex.Cw-2/A** & **Ex.Cw-2/B**.

Cw-3, Zafar Iqbal 305/C, who got conducted postmortem of both the deceased and got exhibited recovery memo **Ex.P-J** of last worn clothes of deceased Shahid Imran i.e Qameez **P-6**, Shalwar **P-7** & Vest **P-8**, recovery memo **Ex.P-K** of last worn clothes of deceased Muhammad Aslam i.e Qameez **P-9**, Shalwar **P-10**, Swetter **P-11**, Garam Chadar **P-12** and Cap **P-13**, recovery memo **Ex.P-B** of blood stained clothes of Mst. Bushra Bibi i.e Qameez **P-1** & Shalwar **P-2** and recovery memo **Ex.Cw-3/A** of mobile phone Samsung with IMEI No.357112/09/974840/4 **C-1**.

Cw-4, Dr. Atiya Maryum, WMO, who medically examined injured Mst. Bushra Bibi and got exhibited MLC **Ex.Cw-4/A**, diagrams of injuries **Ex.Cw-4/A/2**, certified copy of MLC alongwith diagrams **Ex.Cw-4/B/1** & **Ex.Cw-4/B/2**, attested copy of report dated 11-01-2019 **Ex.Cw-4/C**, attested copy of daily progress sheet **Ex.Cw-4/D**, surgeon expert opinion dated 11-01-2019 **Ex.Cw-4/E**, attested copy of ultrasound report **Ex.Cw-4/F**, attested copy of blood report **Ex.Cw-4/G**, attested copy of discharge slip of injured **Ex.Cw-4/H**, referral letter **Ex.Cw-4/J**, attested copy of ultrasound image **Ex.Cw-4/K** and Radiologist report **Ex.Cw-4/L** with report dated 21-01-2019 **Ex.Cw-4/L/1**.

Cw-5, Dr. Farrukh Mehmood, Medical Officer, who conducted postmortem on the dead bodies of the deceased Shahid Imran and Muhammad Aslam and got exhibited copy of PMR **Ex.Cw-5/A**, diagrams **Ex.Cw-5/A/1-2**, copy of PMR **Ex.Cw-5/B** & diagrams **Ex.Cw-5/B/1-2**.

Cw-6, Ghazanfar Ali ASI, Moharrar.

Cw-7, Hammad Hassan, witness of making of video of the occurrence, who got exhibited recovery memo **Ex.Cw-3/A** of Samsung mobile phone **C-1**.

Cw-8, Azhar Iqbal, Sub-Inspector, Investigating Officer.

Cw-9, Sajjad Azam, Sub-Inspector, Investigating Officer, who got exhibited application **Ex.P-A**, injury statement **Ex.Cw-9/A**, inquest report **Ex.Cw-9/B**, application for postmortem **Ex.Cw-9/C** of deceased Shahid Imran, injury statement **Ex.CW-9/D**, inquest report **Ex. CW-9/E**, application for postmortem **Ex. Cw-9/F** of deceased Muhammad Aslam, recovery memo **Ex.P-G** of 12 sealed parcels prepared by CSIU team alongwith exhibit sheet **C-2**, recovery memos **Ex.P-D**,

Ex.P-E & Ex.P-F of collection blood stained earth of Shahid Imran, Muhammad Aslam and Mst. Bushra Bibi, recovery memo **Ex.P-H** of Kassi **P-4** & 05 Bricks **P-5/1-5**, rough site plan of place of occurrence **Ex.Cw-9/G**, recovery memo **Ex.P-J** of last worn clothes of deceased Shahid Imran i.e Qameez **P-6**, Shalwar **P-7** & Vest **P-8** and recovery memo **Ex.P-K** of last worn clothes of deceased Muhammad Aslam i.e Qameez **P-9**, Shalwar **P-10**, Garam Chadar **P-12** and Cap **P-13**, application **Ex.Cw-9/H** for permission to get record statement of injured Mst. Bushra Bibi, application dated 12-01-2019 **Ex.Cw-9/J** for permission to get record statement of injured Mst. Bushra Bibi, recovery memo **Ex.P-B** of blood stained clothes of Mst. Bushra Bibi i.e Qameez **P-1** & Shalwar **P-2**, scaled site plan **Ex.Cw-2/A** & **Ex.Cw-2/B**, recovery memo **Ex.Cw-3/A** of mobile phone Samsung 4 **C-1**, recovery memo **Ex.P-L** of 12 bore gun bearing No. 12470 **P-14** and Jhola **P-15** alongwith 05 live rounds **P-16/1-5** got recovered by accused Muhammad Azam, unscaled site plan of place of recovery **Ex.P-L/1**, recovery memo **Ex.P-M** of rifle 44 bore **P-17** alongwith 04 live rounds **P-18/1-4** got recovered by accused Azmat Naeem, unscaled site plan of place of recovery **Ex.P-M/1**, recovery memo **Ex.P-N** of pistol 30 bore **P-19** alongwith 03 live rounds **P-20/1-3** got recovered by accused Umar Hayat and unscaled site plan of place of recovery **Ex.P-N/1**.

3. The learned DDPP Rana Sultan Sullahudin Khan closed the prosecution evidence by tendering following documents:-

- i). Report of Forensic DNA & Serology Analysis dated 17-01-2019 as **Ex.P-P**,
- ii). Report of Computer Forensic Analysis dated 06-02-2019 **Ex.P-Q/1-2** alongwith DVD as **Ex.P-Q/3**,
- iii). Report of Firearms & Toolmarks Examination dated 22-03-2019 as **Ex.P-R/1-2**, and
- iv). Report of Audio Visual Analysis dated 18-04-2019 as **Ex.P-S**.

5. Thereafter, the appellants and their co-accused were examined in terms of section 342 Cr.P.C. the detail of which is mentioned in Paragraph No.4 of impugned judgment, which is reproduced as infra:-

4. Accused did not opt to produce defence witnesses. Accused while recording their statements u/s 342 Cr.P.C had answered the question “why this case against you and why witnesses deposed against you” as following:-

1). Muhammad Azam.

“Pws are closely related inter-se and to the deceased persons, they have falsely deposed against me to justify the wrong committed by Shahid Imran deceased. Actually, the real facts do contain in the video. The occurrence took place at the spur of the moment in the

courtyard of my house, when I saw Mst. Bushra Bibi, the injured, alongwith four other ladies while throwing my wife Mst. Kaneez Bibi on the brick-heaps and Shahid Imran deceased started digging out the courtyard of my house. The occurrence would never had been committed, if Shahid Imran deceased, etc had not played havoc with us.

ii). Umar Hayat.

The complainant and Pws are closely related inter se and to the deceased persons, they have deposed falsely against me just to strengthen their false case. They have roped me falsely in this false case on this very account.

iii). Muhammad Adnan @ Mani.

The complainant party knows very well about my innocence. Even otherwise, I have nothing to do with the alleged occurrence, but, as Azam and Azmat co-accused are my close relatives, so they have falsely entangled me too. I am innocent and had not played any role in happening of the alleged occurrence.

and the remaining accused Azmat Naeem, Mst. Kaneez Bibi, Muhammad Aslam, Mst. Shahnaz Bibi, Yasir and Irfan Mushtaq also deposed on the same lines in their respective answers to this question as deposed by their co-accused

6. The trial court, on conclusion of trial, *vide* judgment dated 27.06.2022, convicted and sentenced Muhammad Azam and Azmat Naeem appellants while acquitting Umar Hayat, Muhammad Aslam, Mst. Kaneez Bibi, Mst. Shahnaz Bibi, Muhammad Adnan @ Mani, Irfan Mushtaq and Yasir co-accused as mentioned hereinabove.

7. Learned counsel for the appellants primarily argued for the acquittal of the appellants, submitting that the prosecution has utterly failed to establish its case beyond a shadow of doubt. It was contended that the trial court has already discredited the eye witnesses by acquitting co-accused Umar Hayat on the very same set of evidence. Assailing the ocular account, learned counsel for the appellants emphasized that the presence of eye witnesses namely Mukhtar Ahmad complainant (PW.1) and Nazir Ahmad (PW.2), at the crime scene in village Kathiala Khurd is highly unnatural, as they were residents of village Choat Dheeran and their justification of attending a “Punchayat” (پنچایت) to settle a property dispute remains entirely uncorroborated by any independent evidence. He further agitated that the prosecution’s narrative is fraught with material discrepancies, particularly

highlighting that the ocular testimony is fundamentally irreconcilable with medical evidence. He next argued that the testimony of Hammad Hassan (CW.7) was legally inconsequential, as he merely testified to the recording of a video film without deposing about the actual occurrence. He also submitted that firstly, the trial court wrongly exhibited certain pictures (Exh.CW7/A to Exh.CW7/H) in evidence and despite reserving its decision *qua* the objections raised by defence for decision at the time of final adjudication of trial, the trial court has not decided those objections. At fag-end, learned counsel for the appellants submitted that photogrammetric test was essential for the purpose of relying upon the video film and in the absence of such test, video film cannot be made basis to maintain convictions and sentences of the appellants. Finally, while asserting that the alleged recoveries were planted and the motive remained wholly unproved, learned counsel for the appellants prayed that the appeal may be allowed and the appellants be acquitted of all the charges.

8. Conversely, learned Deputy Prosecutor General ably assisted by learned counsel for the complainant vehemently opposed the appeal, asserting that the prosecution has established its case beyond any shadow of doubt through overwhelming and unimpeachable evidence. It was contended that the appellants were explicitly nominated in both the FIR and the private complaint with specific roles attributed to them. Ruling out any possibility of misidentification, learned counsel for the complainant highlighted that the daylight incident took place in a house jointly shared by one of the deceased, the injured, and the accused persons. Repelling the defence's contentions, learned Deputy Prosecutor General maintained that the ocular account regarding the appellants is perfectly synchronized with the medical evidence and it stands firmly corroborated by the recovery of crime weapons as well. Addressing the acquittal of co-accused Umar Hayat, it was forcefully argued that under the well-settled principle of sifting the grain from the chaff, the convictions of present appellants remain fully intact. Defending the digital evidence, learned Deputy Prosecutor General submitted that Hammad Hassan (CW.7) is a natural witness whose presence is indubitable; he admittedly recorded a video film of the incident and the same was thoroughly authenticated by the Punjab Forensic Science Agency's report (Exh.PS), which ruled out any tampering or editing of

video film. Addressing to the arguments of learned counsel for the appellants *qua* exhibiting of pictures and photogrammetric test, learned counsel for the complainant has argued that the pictures were rightly exhibited and since the defence has categorically admitted the presence, identity and visibility of appellants in video film, there was no need to conduct photogrammetric test. Emphasizing the sheer gravity of the offence, involving a double murder and injuries sustained by an eye witness, it was argued that the trial court erred in exercising unwarranted leniency by withholding the normal penalty of death. Finally, it was prayed that the appeal filed by the appellants may be dismissed and by allowing the connected criminal revision, the appellants' sentences be enhanced from life imprisonment to death on both counts.

9. Learned Amicus Curiae has highlighted that the determination of criminal liability in this capital case must pivot upon the unimpeachable and objective electronic evidence, rather than the heavily embellished and medically contradicted ocular account. He added that under the progressive mandate of Article 164 of the Qanun-e-Shahadat Order, 1984, the forensic-backed video recording acts as an incorruptible silent witness, which definitively shatters the prosecution's orchestrated multi-shooter narrative and establishes the actual, unvarnished sequence of events.

10. I have carefully weighed the rival submissions advanced by learned counsel for the appellants, learned Deputy Prosecutor General who was ably assisted by the counsel for the complainant, as well as learned Amicus Curiae and minutely perused the evidentiary record.

11. Before evaluating the evidence on the record, it is necessary to resolve a procedural omission made by the trial court. During cross-examination on Hammad Hassan (CW.7), certain photographs were tentatively marked as Exh.CW7/A to Exh.CW7/H. The defence counsel objected to their admissibility, and the trial court noted that this objection would be decided at the time of final judgment. However, the impugned judgment shows that this objection was left undecided. Since an appeal is a continuation of the trial, this Court is competent to decide this pending issue. A careful perusal of record reflects that there is no evidence on record to establish as to who made these pictures or who inscribed the names on

them. Furthermore, Hammad Hassan (CW.7) did not claim to have taken these pictures or written the names himself. It is a settled principle of law that any document or photograph lacking verification and formal proof of its maker cannot be taken into consideration. Therefore, the trial court erred in exhibiting these unauthenticated photographs. Resultantly, the objection of the defence is sustained and the photographs (Exh.CW7/A to Exh.CW7/H) are hereby de-exhibited and excluded from consideration.

12. Upon reappraising the evidence on record, learned counsel for all parties, including the appellants, the learned Deputy Prosecutor General, the complainant and learned Amicus Curiae, agreed on the fundamental facts of the case. It is undisputed that the incident occurred at the stated date, time, and location, resulting in two fatalities and one person sustaining firearm injuries. The issues remaining for the Court to resolve are *qua* the actual presence of certain witnesses at the time and place of occurrence as well as the exact manner in which the events unfolded. The prosecution asserts that the tragedy was witnessed by Mukhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2), Mst. Bushra Bibi injured (PW.3) besides a given up witness namely Ghulam Haider and further maintained that Hammad Hassan (CW.7) recorded the video of the incident with his mobile phone. Mukhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2) and Mst. Bushra Bibi (PW.3) throughout maintained that on the day of incident i.e. 11.01.2019 at about 09:30 a.m. they were present at the crime scene to mediate a dispute between Shahid Imran (since deceased) and the appellants as the former wanted to construct a wall, separating the joint house, without the consent of the appellants and their co-accused. According to them, each accused including the appellants played a distinct and active role in the armed assault. Muhammad Azam appellant initiated the violence by raising a *lalkara* and then made a fire shot causing firearm injury on the chest of Shahid Imran (deceased) and subsequently he also made fire shot and caused firearm injury on Mst. Bushra Bibi (PW.3) near her left breast when she tried to intervene and rescue her husband Shahid Imran (deceased). Similarly, Azmat Naeem appellant has been burdened by them with the role of making fire shots and causing firearm injury on left abdomen of Shahid Imran (deceased) as well as left flank of Mst. Bushra Bibi (PW.3) and in

addition to that, he has been further ascribed the role of making fire shot and causing firearm injury on left flank of Muhammad Aslam (deceased). Likewise, Umar Hayat co-accused contributed to the casualties when he made fire shot and caused firearm injury on left side of back of Shahid Imran (deceased) and later made fire shot and caused firearm injury on left flank of Muhammad Aslam (deceased) and finally, Atif alias Jurnal co-accused (since P.O.) also joined the attack at the gate where he made fire shot and caused firearm injury on left flank of Muhammad Aslam (deceased).

On the contrary, the stance of the defence during the course of investigation as well as during trial before the trial court by way of trend of cross-examination and even at the time of recording statements under section 342 Cr.P.C. was that the occurrence had taken place in a mode and manner as can be seen in video film recorded by Hammad Hassan (CW.7) and only the persons visible in video were present at the crime scene at relevant date and time.

To arrive at a just conclusion regarding the guilt or innocence of the appellants, it is imperative to first assess and weigh the ocular account brought on record by the prosecution. This ocular account primarily hinges upon the depositions of Mukhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2) and Mst. Bushra Bibi (PW.3). Since a capital charge demands an absolute standard of proof, the testimonies of these eye witnesses must pass the rigorous test of probability and truthfulness before being made the basis of any conviction. Consequently, I shall first address the veracity of their claims and evaluate their credentials as natural or chance witnesses in the light of attending facts and circumstances of the occurrence.

13. A critical, microscopic and holistic evaluation of ocular account furnished by Mukhtar Ahmad complainant (PW.1) and Nazir Ahmad (PW.2) reflects inherent, irreconcilable and fatal flaws regarding their physical presence at the crime scene. It is an admitted and undisputed fact on the record that both these material eye witnesses were not residents of village Kathiala Khurd which was the theater of the unfortunate occurrence rather they were permanent residents of a completely different village named Choat Dheeran. In the established realm of criminal jurisprudence,

such individuals are legally classified and termed as “chance witnesses”. The Supreme Court of Pakistan has consistently and unequivocally laid down the strict rule of prudence regarding the evidentiary value of chance witnesses. The settled principle dictates that when a chance witness claims to have witnessed a crime outside his ordinary place of residence, workplace or daily routine, his unexpected presence at the crime scene must be justified by a compelling, logical and plausible reason. Furthermore, such justification cannot be accepted on its face value but must invariably be supported by confidence-inspiring, independent and unimpeachable corroboration. When I evaluate the justification advanced by Mukhtar Ahmad complainant (PW.1) and Nazir Ahmad (PW.2) on the touchstone of this legal standard, it falls drastically short. The sole reason offered by them for their highly unnatural presence at the spot was that they had traveled from Choat Dheeran to the house of the deceased to attend a “Punchayat” (پنچایت), a traditional reconciliation meeting, aimed at resolving the ongoing domestic friction over the digging and construction of a partition wall. However, this assertion remains a mere bald, self-serving claim, completely devoid of any independent corroborative backing. By its very nature, a “Punchayat” (پنچایت) is a communal gathering that inherently involves the participation of local elders, neutral neighbours or notables of the respective area to mediate between the disputing factions. Shockingly, the prosecution utterly failed to produce, cite or join any neutral, independent resident or notable of village Kathiala Khurd during the entire course of the investigation or the trial to substantiate the convening of any such formal or informal “Punchayat” (پنچایت) at the relevant date and time. This glaring lack of independent corroborative evidence renders their stated purpose of visit highly suspect, artificial and a clearly engineered afterthought designed solely to justify their status as eye witnesses of the occurrence. Reliance is placed upon the case-laws titled as “Muhammad Siddique and another v. The State and others” (2026 SCMR 783), “Rasheed Ahmad alias Sheeda v. The State” (2026 SCMR 798) and “Iftikhar alias Puppi v. The State” (2026 SCMR 891).

14. The final, most devastating and insurmountable blow to their claimed presence is dealt by the objective, scientific electronic evidence and the sworn testimony of Hammad Hassan (CW.7). The digital video recorded by Hammad Hassan (CW.7) on his mobile phone captured the dynamic sequence of events, the immediate surroundings of the courtyard and the active participants engaged in the fatal scuffle. Had Mukhtar Ahmad complainant (PW.1) and Nazir Ahmad (PW.2) actually been present at the spot, attempting to mediate or witness the broad-daylight incident from close proximity as they claimed, their physical presence, or at the very least their voices, would have inevitably been captured by the digital lens. Yet, during his cross-examination, Hammad Hassan (CW.7) explicitly, categorically and unambiguously admitted that neither the complainant (PW.1) nor Nazir Ahmad (PW.2) was visible anywhere in the video film captured exactly at the time of the occurrence. Relevant line from the cross-examination of Hammad Hassan (CW.7) is reproduced as infra: -

“It is correct that in video contained in C-1, Mukhtar Ahmad the complainant and Nazir Ahmad s/o Bashir Ahmad, Ghulam Haider s/o Sher Muhammad P.Ws are not visible, volunteered that said P.ws were standing by the side of the occurrence at the relevant time.”

This is an inescapable judicial admission by a key prosecution witness which completely uprooted the foundational claim of ocular account. When the uncorroborated and highly unnatural presence of closely related chance witnesses is diametrically contradicted and thoroughly falsified by the objective, unblinking reality of an un-tampered digital video recording, their oral testimonies lose all evidentiary worth, sanctity and probative value. Consequently, tested heavily on the touchstone of the golden principles of safe administration of criminal justice enunciated by the apex Court regarding chance witnesses, I am legally constrained to hold that the physical presence of Mukhtar Ahmad (PW.1) and Nazir Ahmad (PW.2) at the crime scene is completely shattered, deeply fabricated and highly doubtful. Therefore, their testimonies are declared fundamentally unsafe, inherently flawed and entirely untrustworthy to be relied upon for maintaining conviction on the capital charge.

15. In addition to the statements of Mukhtar Ahmad complainant (PW.1) and Nazir Ahmad (PW.2), the prosecution has heavily capitalized upon the testimony of Mst. Bushra Bibi (PW.3), vehemently asserting that since she sustained firearm injuries during the same occurrence, the stamp of injuries on her person acted as an absolute seal of credibility, rendering her testimony as the gospel truth. While it is a recognized principle of criminal jurisprudence that the injuries sustained by a witness conclusively establish her physical presence at the crime scene, it is equally a well-entrenched legal maxim that such a stamp of injuries is not an automatic guarantee of absolute truthfulness. An injured witness remains entirely capable of fabricating details, making material improvements and maliciously casting a wider net of implication to falsely entangle innocent adversaries due to underlying family feud. The Supreme Court of Pakistan has consistently held that the testimony of an injured witness cannot be accepted *ipso facto* as a gospel truth in isolation; rather it must pass the rigorous test of probability and be weighed against the surrounding circumstances and independent corroboration. If the narrative of an injured witness is found to be exaggerated or in conflict with objective realities, the mere stamp of injuries on her body does not salvage her credibility. This principle has been consistently affirmed by the apex Court in the case-laws titled as “Amin Ali and another v. The State” (2011 SCMR 323), “Nazir Ahmad v. Muhammad Iqbal and another” (2011 SCMR 527) and “Fateh Khan v. The State and others” (2025 SCMR 1408).

In the present case, the narrative articulated by Mst. Bushra Bibi (PW.3) completely collapses when subjected to critical judicial scrutiny. She deposed a highly magnified and orchestrated account, assigning specific roles to multiple accused persons including the appellants. She claimed that Muhammad Azam and Azmat Naeem appellants had fired systematically at the deceased persons as well as at herself and she explicitly burdened Umar Hayat co-accused with firing at the back of Shahid Imran deceased and left flank of Muhammad Aslam deceased. However, this perfectly choreographed version is diametrically contradicted by the objective reality captured in the unedited digital video film by Hammad Hassan (CW.7). The forensic-backed video entirely shattered her narrative of a pre-planned ambush involving multiple shooters, explicitly

revealing instead a sudden, chaotic physical scuffle over a single weapon during a dispute over the courtyard wall. Furthermore, the trial court has already disbelieved her testimony as well as the testimonies of Mukhtar Ahmad complainant (PW.1) and Nazir Ahmad (PW.2) regarding specific attributions made against Umar Hayat co-accused, whose acquittal, as frankly conceded by Deputy Prosecutor General as well as learned counsel for the complainant, has already attained finality. It is a settled principle of law that the rule of *falsus in uno, falsus in omnibus* (false in one thing, false in all), while not universally applied in its strictest sense in Pakistan, severely impairs the reliability of the witness, when she is found to have deliberately lied to falsely implicate a co-accused on a capital charge. Since the testimony of Mst. Bushra Bibi (PW.3) is deeply tainted with deliberate exaggerations, irreconcilable conflicts with the independent electronic video and a proven tendency to falsely implicate innocent persons in this case, her status as an injured witness cannot cure these glaring structural defects. Therefore, I hold that whatever she has spoken cannot be treated as gospel truth and it is fundamentally unsafe to maintain capital conviction based on her discredited and contradictory account without unblemished independent corroboration.

16. Another pivotal touchstone for assessing the veracity and reliability of an eye witness's testimony in capital cases is its absolute and unwavering harmony with the objective and independent medical evidence. A profound and meticulous juxtaposition of the ocular account as furnished by Mukhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2) and Mst. Bushra Bibi (PW.3) against the medical evidence brought on record through the statements of Dr. Attia Maryum (CW.4) and Dr. Farukh Mahmood (CW.5) exposes glaring, irreconcilable and fatal contradictions which irreversibly shattered the credibility and the very foundation of their narrative. According to the synchronized, highly specific and seemingly orchestrated ocular account, these three eye witnesses ascribed distinct and devastating roles of firing to a multitude of accused persons including the appellants and Umar Hayat acquitted co-accused. They categorically and unanimously alleged that Muhammad Azam appellant fired directly at the chest of Shahid Imran deceased; Azmat Naeem appellant fired specifically at his abdominal

region and Umar Hayat co-accused (since acquitted) also fired at the back of Shahid Imran deceased. However, this perfectly choreographed multi-shooter theory is fundamentally and scientifically falsified by medical evidence. Dr. Farukh Mahmood (CW.5), who conducted post-mortem examination, confirmed that Shahid Imran sustained two separate entry wounds possessing the exact same diameter of 1.5 x 1.5 cm. Critically, during cross-examination, he (CW.5) admitted that the possibility of both of these injuries being caused with one and the same weapon could not be ruled out. More devastatingly for the ocular account, the injury on the back of Shahid Imran, which was vehemently attributed to Umar Hayat co-accused (since acquitted) as a distinct entry wound, was medically proven by the doctor to be an exit wound, which completely negated the false allegation that a third shooter was firing from behind the deceased. This irreconcilable conflict is further magnified regarding the tragic death of other deceased namely Muhammad Aslam. Mukhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2) and Mst. Bushra Bibi (PW.3) unanimously deposed that as soon as Muhammad Aslam (deceased) reached at the gate, Umar Hayat co-accused (since acquitted), Atif alias Jurnal (since P.O.) and Azmat Naeem appellant successively fired with their respective weapons and all three of these distinct shots hit Muhammad Aslam (deceased) on his left flank. Conversely, post-mortem report and the categorical deposition of Dr. Farukh Mahmood (CW.5) established beyond any shadow of doubt that Muhammad Aslam (deceased) sustained only one firearm injury, which consisted of one entry wound on his ribs and one corresponding exit wound. It is an absolute biological and physical impossibility for three distinct shooters to fire three separate shots which miraculously culminate into a single entry wound on the body of Muhammad Aslam (deceased).

It is a well-entrenched and long-standing principle of criminal jurisprudence, repeatedly affirmed by the Supreme Court of Pakistan in innumerable pronouncements that while medical evidence cannot always definitively identify the specific assailant, it serves as an infallible acid test to verify the truthfulness of eye witnesses regarding the weapons utilized and the exact locales of injuries. Since the ocular account furnished by Mukhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2) and Mst. Bushra Bibi (PW.3) is found to be in direct, absolute and blatant conflict

with the medical evidence, the law creates a strong presumption that these witnesses have deliberately lied, fabricated roles and engineered a completely false narrative. In such circumstances, where the witnesses have undeniably woven a web of false implication even regarding the acquitted co-accused, their inherently flawed and medically contradicted testimonies cannot be surgically partitioned to extract a safe conviction. Therefore, the ocular account in the shape of statements of Mukhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2) and Mst. Bushra Bibi (PW.3) is rendered fundamentally destitute of legal worth and cannot be used to sustain conviction on capital charge. Reliance is placed on the case-laws titled as “Muhammad Nawaz v. The State” (2025 SCMR 1053), “Iftikhar Ahmad alias Meena v. The State” (2026 SCMR 674) and “Amjad Ali v. The State” (2026 SCMR 729).

17. While the ocular account furnished by Muhkhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2) and Mst. Bushra Bibi (PW.3) suffers from material contradictions and inherent improbabilities, which warranted their outright rejection, the case of the prosecution is overwhelmingly salvaged by independent and objective electronic evidence brought on the record through Hammad Hassan (CW.7). Having discarded the untrustworthy oral testimonies of above mentioned prosecution witnesses, the attention of this Court is squarely drawn to the video film of the crime, which stands as the actual and silent witness in this case. Unlike human witnesses, whose memories may fade or whose motives may be compromised, such a silent witness cannot be expected to tell anything but the truth. The admissibility and reliance upon electronic evidence are firmly rooted in our criminal jurisprudence, governed by specific statutory provisions which adapt the law to modern technological advancements. Article 164 of the Qanun-e-Shahadat Order, 1984, specifically empowers the courts to allow the production of any evidence which may have become available because of modern devices or techniques. This article profoundly elevates the evidentiary value of modern techniques and serves as a crucial gateway for the inclusion of electronic recordings, ensuring that the legal system does not lag behind technological progress. Furthermore, the text of this article mandates that a court may base a conviction solely on electronic evidence,

provided its authenticity is unquestionable and it is corroborated by forensic backing. It also establishes that a video recording, once proved authentic, constitutes substantive evidence rather than merely corroborative material. For convenience, Article 164 of the Qanun-e-Shahadat Order, 1984, is reproduced as infra: -

“164. Production of evidence that has become available because of modern devices or information system, etc. Depending on the nature of case and circumstances, the Court may, if deem appropriate, allow to be produced any evidence or witnesses recorded by the Court through the modern devices or techniques including video call, viber, skype, imo, whatsapp, facebook messenger, line caller and video conference, etc.”

Complementing these rules of evidence, the Code of Criminal Procedure, 1898, provides the procedural mechanism for the collection and validation of such modern evidence. Section 4 sub-section (1) clause (l) of the Code of Criminal Procedure, 1898, defines the term investigation as including all the proceedings under the Code for the collection of evidence conducted by a police officer. This broad statutory definition strictly encompasses the recovery, secure sealing and forensic preservation of electronic data and mobile devices by the Investigating Officer. Additionally, Section 510 of the Code of Criminal Procedure, 1898, Article 59 of Qanun-e-Shahadat Order, 1984 and section 9(3) of the Punjab Forensic Science Agency Act, 2007, grant explicit statutory cover to the admissibility of reports prepared by specialized experts, such as those from the Punjab Forensic Science Agency. The profound impact of legal provisions is that the same allow the Court to read the forensic report in evidence without necessarily calling the expert to the witness box, thereby streamlining the process of trial while ensuring scientific certainty. The evidentiary value of aforementioned video film is entirely dependent on its authenticity, safe custody and proof of non-interference. In this regard, the deposition of Hammad Hassan (CW.7) is pivotal, natural and confidence-inspiring. During trial, Hammad Hassan (CW.7) categorically deposed that he was present at the scene and upon sensing the imminent danger, he immediately took out his mobile phone and recorded the occurrence continuously without pausing. He further swore that the video was completely unedited and that he handed over his mobile phone containing

the original, unaltered video film directly to the Investigating Officer, whereupon it was sealed into a secure parcel in his presence. This precise, unwavering stance was subjected to the test of cross-examination, yet Hammad Hassan (CW.7) remained completely unshaken. To corroborate this oral assertion, the prosecution placed on the record the forensic report (Exh.PS) issued by the Punjab Forensic Science Agency. The comprehensive scientific analysis detailed in the forensic report confirms that the hash value of the video film matched the originally extracted data, the frame rate was consistent and there were no signs of splicing, dubbing or digital manipulation whatsoever. The chain of custody, from the moment the device was seized by the police officer to its submission at the Punjab Forensic Science Agency, remained completely intact. This Court is deeply guided by the binding dictums laid down by the Supreme Court of Pakistan regarding the standard of proof required for the admissibility of modern devices. In the landmark judgment of *“Ishtiaq Ahmad Mirza v. The State”* (PLD 2019 Supreme Court 675) the apex Court established stringent guidelines for admissibility of video and audio evidence. Relevant lines from the esteemed judgment read as infra:-

“11. The precedent cases mentioned above show that in the matter of proving an audio tape or video before a court of law the following requirements are insisted upon:

- *No audio tape or video can be relied upon by a court until the same is proved to be genuine and not tampered with or doctored.*
- *A forensic report prepared by an analyst of the Punjab Forensic Science Agency in respect of an audio tape or video is per se admissible in evidence in view of the provisions of section 9(3) of the Punjab Forensic Science Agency Act, 2007.*
- *Under Article 164 of the Qanun-e-Shahadat Order, 1984 it lies in the discretion of a court to allow any evidence becoming available through an audio tape or video to be produced.*
- *Even where a court allows an audio tape or video to be produced in evidence such audio tape or video has to be proved in accordance with the law of evidence.*
- *Accuracy of the recording must be proved and satisfactory evidence, direct or circumstantial, has to be produced so as to rule out any possibility of tampering with the record.*
- *An audio tape or video sought to be produced in evidence must be the actual record of the*

conversation as and when it was made or of the event as and when it took place.

- *The person recording the conversation or event has to be produced.*
- *The person recording the conversation or event must produce the audio tape or video himself.*
- *The audio tape or video must be played in the court.*
- *An audio tape or video produced before a court as evidence ought to be clearly audible or viewable.*
- *The person recording the conversation or event must identify the voice of the person speaking or the person seen or the voice or person seen may be identified by any other person who recognizes such voice or person.*
- *Any other person present at the time of making of the conversation or taking place of the event may also testify in support of the conversation heard in the audio tape or the event shown in the video.*
- *The voices recorded or the persons shown must be properly identified.*
- *The evidence sought to be produced through an audio tape or video has to be relevant to the controversy and otherwise admissible.*
- *Safe custody of the audio tape or video after its preparation till production before the court must be proved.*
- *The transcript of the audio tape or video must have been prepared under independent supervision and control.*
- *The person recording an audio tape or video may be a person whose part of routine duties is recording of an audio tape or video and he should not be a person who has recorded the audio tape or video for the purpose of laying a trap to procure evidence.*
- *The source of an audio tape or video becoming available has to be disclosed.*
- *The date of acquiring the audio tape or video by the person producing it before the court ought to be disclosed by such person.*
- *An audio tape or video produced at a late stage of a judicial proceeding may be looked at with suspicion.*
- *A formal application has to be filed before the court by the person desiring an audio tape or video to be brought on the record of the case as evidence.”*

The profound impact of above-mentioned guidelines laid down by the Supreme Court of Pakistan is that it shifted the burden strictly onto the prosecution to prove that the electronic evidence is entirely un-tampered, the source is clearly identified, the chain of custody is unbroken and the possibility of manipulation is definitively ruled out through a forensic analysis. In the present case, the rigorous criteria mandated by “Ishtiaq

Ahmad Mirza's case” has been fully satisfied through clear identification of the source by Hammad Hassan (CW.7) and the unblemished forensic report (Exh.PS).

18. At this point of discussion, it is highly pertinent to evaluate the conduct of the defence side regarding this piece of electronic evidence. While the defence exhausted substantial effort in highlighting the discrepancies among Muhkhtar Ahmad complainant (PW.1), Nazir Ahmad (PW.2) and Mst. Bushra Bibi (PW.3), their approach toward the video film and the testimony of Hammad Hassan (CW.7) was noticeably evasive. The defence completely failed to challenge the technological integrity of the video film during cross-examination on Hammad Hassan (CW.7) or the Investigating Officer. No substantive questions were put forth regarding the hash value, the forensic methodology adopted by the Punjab Forensic Science Agency or the possibility of digital manipulation. Instead, the defence offered mere blank suggestions that the video was fabricated, which is a hollow defence that holds no legal weight against a positive, scientifically backed forensic report (Exh.PS). By failing to actively cross-examine on the technical veracity of the footage or produce any counter-expert of their own, the defence impliedly conceded to the authenticity of the video. Therefore, having safely discarded the tainted ocular account, I am fully inclined to rely upon the evidence of Hammad Hassan (CW.7) and the unedited video film made by him at the time of occurrence, which stands as an incorruptible witness. While holding so, I am fortified by the dictum laid down in the case-law titled as “Zahir Zakir Jaffar v. The State” (PLJ 2025 SC [Cr.C] 168), wherein the Supreme Court of Pakistan has been pleased to heavily rely upon closed-circuit television footage by elevating its status to paramount importance in uncovering the absolute truth. The impact of the ruling in “Zahir Zakir Jaffar's case” is the judicial recognition that an unedited and un-tampered video recording acts as an objective, unblinking witness who cannot be tutored, coerced or intimidated by any party. Relevant paragraphs from this pronouncement of Supreme Court of Pakistan are reproduced as infra: -

“10. It is a well-known fact that technology has become so ingrained in our lives that everyone is utilizing one form of technology or another. Criminals are also employing this in

our society, establishing a trail for digital forensics to follow in order to uncover their crimes. It is important to note that we were unable to capitalize on digital evidence for an extended period of time due to the following factors: Firstly, our courts were previously reliant on traditional methods of evidence collection and presentation. Secondly, digital evidence was admissible only under article 164 of the Qanun-e-Shahadat Order, 1984 ("QSO of 1984), which allows the court to admit any evidence that is obtained through the use of modern devices if it is deemed appropriate. Thirdly, the evidence was considered hearsay. Nevertheless, in light of the growing importance of tracing and identifying the perpetrators, some critical legislative changes were implemented to grant digital evidence the status of primary evidence. The Electronic Transactions Ordinance (ETO) was implemented in 2002 to capitalize on the advantages of information technology. This Ordinance has resulted in modifications to other laws, such as the QSO of 1984, that pertain to the admissibility of digital evidence. It has also designated such evidence as primary evidence. The amendments to the QSO of 1984, as introduced by the aforementioned Ordinance, are as follows:

"2(e): The expression "automated", "electronic", "information", "information system", "electronic document", "electronic signature", "advanced electronic signature" and "security procedure" shall bear the meanings given in Electronic Transactions Ordinance, 2002.

Art. 73 - (Explanation 3): A printout or other form of output of an automated, information system shall not be denied the status of primary evidence solely for the reason that it was generated, sent, received or stored in electronic form if the automates information system was in working order at all material times and, for the purposes hereof, in the absence of evidence to the contrary, it shall be presumed that the automated information system was in working order at all material time.

Art. 73 - (Explanation 4): A printout or other form of reproduction of an electronic document, other than a document mentioned in Explanation 3 above, first generated, sent, received or stored in electronic form shall be treated as primary evidence where a security procedure was applied thereto at the time it was generated, sent, received or stored.

Art. 46-A: **Relevance of information generated, received or recorded by automated information system.** Statements in the form of electronic documents generated, received or recorded by an automated information system while it is in working order, are relevant facts."

11. Similarly, a proviso was added to article 164 of QSO of 1984 through Criminal Laws (Amendment) Act, 2017 in relation to digital evidence which read as under:

“Provided that conviction on the basis of modern devices or techniques may be lawful.”

However, article 164 of the QSO of 1984 stood substituted in the year 2023 through Criminal Laws (Amendment) Act, 2023 and it now reads as follows:

“164. Production of evidence that has become available because of modern devices or information system, etc. Depending upon the nature of case and circumstance, the Court may, if deem appropriate, allow to be produced any evidence or witnesses recorded by the Court through modern devices or techniques including video call, viber, skype, imo, whatsapp, facebook messenger, line caller and video conference, etc.”

12. The CCTV footage may also be admitted under the “Silent witness” theory, which stipulates that the video itself functions as evidence without the necessity of a sponsoring witness, provided that the footage is authenticated. It provided unbiased and real-time evidence that is frequently more reliable than human testimony, serving as a potent “Silent Witness”. In Black’s Law Dictionary, 9th Edition, at page 1508, ‘Silent Witness Theory’ is mentioned as under:

“A method of authenticating and admitting evidence (such as a photograph), without the need for a witness to verify its authenticity, upon a sufficient showing of the reliability of the process of producing the evidence, including proof that the evidence has not been altered.”

13. The “Silent Witness theory” is a rule of evidence that allows for the admission of photographic video, or other recorded evidence as substantive proof of what it depicts, without the need for an eyewitness to testify that they personally observed the events depicted in the recording (United States v. Harris, 55 M.J.433 (C.A.A.F 2001). Over the last 25 years, the “Silent Witness” theory of authentication has developed in almost all jurisdictions to allow photographs to substantively “speak for themselves” after being authenticated by evidence that supports the reliability of the process or system that produced the photographs. The threshold case for automated camera evidence is United States v. Taylor (530 F.2d 639 (5th Cir 1976)). In that case, footage recording a robbery that was taken after bank employees were locked in the bank vault was admitted, despite the fact that no one could testify as to the events shown.”

In “Zahir Zakir Jaffar’s case”, the Supreme Court of Pakistan has also been pleased to further hold as infra: -

“16. The digital evidence has now assumed a crucial role in the courts of law while administrating justice. In the recent past such evidence was treated as hearsay and secondary evidence in our country, however, as stated above, keeping in view its importance, particularly in tracing and identifying the

culprits, required changes were made in the relevant laws in order to give the status of primary evidence to the digital evidence, thus, being primary evidence, it is admissible. The CCTV footages, if pass the two-fold test, as per dictum laid down by this Court in the case of Ahmad Omar Sheikh (supra), then it does not require any corroboration being primary evidence.”

19. It is a well-settled and universally recognized principle of criminal jurisprudence that an appeal is essentially the continuation of original trial. By virtue of expansive and comprehensive powers vested in the appellate court under Section 423 Cr.P.C. this Court is fully empowered, and indeed strictly duty-bound to re-appraise, re-evaluate and independently scrutinize the entire evidentiary record to ensure that the fundamental dictates of substantive justice are meticulously met. The appellate forum is not a mere rubber stamp for the findings of the trial court; rather, it functions as a dynamic arena where the evidence can be re-examined to unearth the absolute truth. Recognizing the paramount and determinative importance of electronic evidence in this complex factual matrix and in strict adherence to the progressive mandate of Article 164 of the Qanun-e-Shahadat Order, 1984, which heavily encourages the courts of law to rely upon evidence generated by modern devices, specialized logistical arrangements were made to play the video film of incident in open Court. This direct judicial observation was purposefully conducted in pursuance of specific order of this Court dated 20.05.2026. Accordingly, ensuring absolute transparency, fairness and the protection of adversarial process, the said video film was played on a large screen in the open courtroom in the physical presence of learned counsel representing the appellants, learned Deputy Prosecutor General representing the State, learned counsel representing the complainant as well as learned Amicus Curiae appointed to assist the Court. This collaborative and transparent viewing methodology ensured that the silent, unblinking witness of the incident was observed concurrently by all the primary stakeholders of criminal justice system, thereby leaving no room for subsequent ambiguity, manipulation or misinterpretation of the raw visual facts captured within the digital frames.

Upon a careful, repeated and frame-by-frame perusal of the aforementioned video film, the Court and all the other concerned legal

minds present in the courtroom arrived at a unanimous and inescapable visual conclusion regarding the actual, unvarnished sequence of the tragic events. The footage, acting as a neutral, incorruptible and completely objective observer, unequivocally demonstrated a factual scenario which significantly diverges from the exaggerated and heavily embellished ocular narratives previously constructed by prosecution witnesses. While intensely watching the video, it became vividly apparent that Muhammad Azam appellant could be distinctly seen present in the frame while carrying the specific weapon of offence. However, the critical and legally decisive turning point captured in the visual record occurred when another person aggressively intervened and physically tried to snatch the said firearm from the physical control of Muhammad Azam appellant. The video clearly and unambiguously depicted a violent physical struggle, a frantic scuffle and a desperate tussle over the possession and control of the lethal weapon. It was precisely during this chaotic, uninterrupted physical struggle and the violent pulling of the firearm back and forth that a single fire shot suddenly opened which tragically and fatally landed upon the person of Shahid Imran (deceased). Except for this singular, struggle-induced gunshot, it is absolutely not shown anywhere in the entirety of the video as to who had made the other fatal or non-fatal fire shots aiming at the deceased persons namely Shahid Imran and Muhammad Aslam or Mst. Bushra Bibi injured (PW.3). As per video film, Azmat Naeem appellant was, though present at the crime scene, but he could not be seen while making any fire shot targeting the deceased persons or the injured witness. So far as the murder charge of Muhammad Aslam (deceased) is concerned, Hammad Hassan (CW.7) admitted during cross-examination conducted upon him by learned counsel for the complainant as infra:-

“It is correct that the video recording contained in C-1 is not of the whole occurrence rather same is of the partial occurrence happened inside the house and is not covering the happening wherein Muhammad Aslam was murdered outside the residential house.”

In this way, only one fire shot triggered from the weapon being carried by Muhammad Azam appellant and landed upon the body of Shahid Imran (deceased) can be seen in the video film but mobile camera's unblinking eye remained utterly blind to the actual author or authors of

remaining specific injuries, rendering the visual record totally silent on the remaining counts of violence.

20. So far as the necessity of photogrammetric test in the light of respective arguments advanced by learned counsel for the appellants and the complainant is concerned, I am of the considered view that the fundamental purpose of conducting a photogrammetric analysis is to scientifically map facial features and bodily proportions to establish the undisputed identity of the suspects captured in visual footage. However, keen analysis of cross-examination conducted by the defence on Hammad Hassan (CW.7), resolves this controversy conclusively. At the very inception of his cross-examination by the defence, Hammad Hassan (CW.7) has stated as infra:-

“It is correct that except Azmat Naeem and Muhammad Azam accused, none else is visible in the video and photographs while armed with any firearm weapon. Except Muhammad Azam and Azmat Naeem, no other accused persons is visible while aiming or making fire shot”

Since the defence had already made a categorical and unambiguous admission regarding the presence, true identity and visual clarity of the appellants in the video film, referring the footage for a photogrammetric test was deemed completely unnecessary. It is a golden principle of law of evidence, as enshrined in the Qanun-e-Shahadat Order, 1984, that admitted facts need not to be proved. Since the appellants themselves conceded their identities and presence within the questioned footage, the core objective of the test was already fulfilled. I am of the considered view that photogrammetric test would be essential only when the identity of assailant was not established. Consequently, the requirement of seeking expert forensic verification was rendered entirely redundant. Therefore, the absence of a photogrammetric test in this case is not a fatal flaw, nor does it cast any shadow of doubt upon the evidentiary value and reliability of the video film under the peculiar circumstances of this case.

21. Adverting to another crucial piece of corroboratory evidence relied upon by the prosecution, I have noted that a 12-bore gun was recovered at the instance of Muhammad Azam appellant on 15.02.2019 vide recovery memo (Exh.PL). Subsequently on 17.02.2019, a rifle 44-bore and a pistol 30-bore were recovered at the instance of Azmat Naeem appellant and

Umar Hayat co-accused (since acquitted) *vide* recovery memos (Exh.PM and Exh.PN) respectively. However, in modern criminal jurisprudence, the mere recovery of a weapon is of no legal consequence unless it is firmly corroborated by an affirmative forensic analysis. A critical perusal of Firearms and Toolmarks Examination Report (Exh.PR/1-2) issued by the Punjab Forensic Science Agency delivers yet another fatal blow to the prosecution's orchestrated narrative. The report categorically states that the crime empties collected from the scene of occurrence completely failed to match with rifle 44-bore and pistol 30-bore recovered from Azmat Naeem appellant and Umar Hayat co-accused (since acquitted) respectively, but regarding Muhammad Azam appellant, the forensic report (Exh.PR/1-2) positively concluded that 12-bore gun got recovered by him during the course of investigation matched with one crime empty. This scientific revelation is of monumental significance, because, it perfectly dovetails with the above discussed objective electronic evidence i.e. the video film, which unequivocally depicted only a single fire shot being discharged during a chaotic, physical scuffle over the weapon. This forensic reality has completely demolished the highly exaggerated ocular account where the witnesses falsely attributed multiple, successive fire shots to Muhammad Azam and Azmat Naeem appellants as well as Umar Hayat co-accused (since acquitted).

22. The mere fact that the prosecution has failed to substantiate its case against Muhammad Azam appellant through ocular account does not mean he cannot be convicted on the sole basis of the video film. It is noteworthy that when a specific part of the occurrence is conclusively established by the video recording, wherein it is abundantly clear that Shahid Imran, deceased sustained a single gunshot wound at his hands, Muhammad Azam appellant cannot be allowed to go scot-free; rather, he can be legally convicted to the extent of that proved part of the incident. In the illuminating light of irrefutable evidence furnished by silent and completely objective electronic witness and the Firearms and Toolmarks Examination Report issued by the Punjab Forensic Science Agency (Exh.PR/1-2), the criminal liability of Muhammad Azam appellant must be thoroughly recalibrated in strict accordance with the substantive law. The visual evidence definitively

proves that the fatal shot which ultimately hit Shahid Imran (deceased) was not the result of a deliberate, premeditated or intentional act of cold-blooded murder. The foundational and strictest prerequisite for establishing the grave offence of Qatl-e-Amd under Section 300 PPC, which is severely punishable under Section 302(b) PPC, is the presence of an active, pre-existing intention to cause death. Instead of proving such malicious intent, the video film established beyond any shadow of reasonable doubt that the fatal fire shot was discharged either accidentally or as a direct, involuntary consequence of a sudden physical struggle initiated by another person attempting to aggressively snatch the weapon of offence. The critical element of *mens rea* is visibly and forcefully negated by the intervening scuffle. Consequently, the physical act of Muhammad Azam appellant which culminated in the death of Shahid Imran (deceased) falls squarely and exclusively within the precise legal ambit of Section 302(c) PPC. This specific statutory clause is legislatively designed to equitably address those unique instances of culpable homicide where the stringent ingredients of intentional murder under clause (a) or clause (b) are not fully attracted, but the act is nonetheless unlawful and tragically results in the loss of human life. Therefore, my firm, evidence-backed conclusion is that, in the light of the evidence furnished by the silent witness, Muhammad Azam appellant can only be held legally responsible for the murder of Shahid Imran (deceased) under the milder, nuanced provision of Section 302(c) PPC, and he is strictly not liable for the capital punishment envisioned under Section 302(b) PPC, because the fire shot was undoubtedly opened during a violent struggle of snatching the weapon of offence from him by another person.

Turning lastly to the distinct and separate case of Azmat Naeem appellant, the independent technological evidence casts a dark, profound, and insurmountable shadow of doubt over his alleged active participation in this heinous crime. The prosecution also could not establish beyond the shadow of doubt that who caused injuries to the other deceased person namely Muhammad Aslam as he was admittedly murdered outside the house and at the gate of residential house as frankly conceded by Hammad Hassan (CW.7) during his cross-examination by learned counsel for the complainant. Similarly Mst. Bushra Bibi injured (PW.3), as noted above,

has been declared untrustworthy and unreliable *qua* the roles of causing injuries on the bodies of deceased persons, for the reason, it is highly unsafe to rely upon her to the extent of her own injuries. It is a golden, time-tested and universally cherished principle of criminal jurisprudence that the prosecution is entirely responsible for proving the guilt of the accused beyond a shadow of a reasonable doubt. The superior courts of this country have consistently held that if there is even a single circumstance, creating a reasonable, prudent doubt in the mind of the Court regarding the guilt or active participation of any accused, then such an accused is unquestionably entitled to the absolute benefit of doubt, not as a matter of judicial grace or sympathetic concession, but as a matter of fundamental and undeniable legal right. In the present scenario, a comprehensive and exhaustive review of video film reflected that Azmat Naeem appellant is completely invisible in the digital footage while allegedly causing any firearm injuries to the deceased persons namely Shahid Imran and Muhammad Aslam or the injured Mst. Bushra Bibi (PW.3). Where the primary, untainted and scientifically backed electronic evidence utterly fails to corroborate the highly partisan and previously discarded oral testimonies, the direct and active participation of Azmat Naeem appellant in the commission of actual murders and attempted murder becomes deeply and irreparably doubtful. The Courts of justice cannot base a heavy criminal conviction on mere assumptions, wild conjectures or the residual presence of an individual at a wider crime scene if the objective, visual evidence totally fails to attribute any specific violent overt act to him. For these reasons, extending the constitutionally mandated benefit of doubt to its fullest extent, participation of Azmat Naeem appellant in the alleged crime is held to be unproven and he is entirely liable to be acquitted of all the charges leveled against him.

23. As a natural corollary and direct consequence of the detailed and comprehensive discussion made hereinabove, the conviction previously passed against Muhammad Azam appellant, under section 302(b) PPC, on two counts, is hereby modified and altered to his conviction under section 302(c) PPC, on single count, for the murder of Shahid Imran (deceased). In tandem with this alteration of conviction, his sentence on this singular count is also appropriately converted from imprisonment for life to a sentence of

rigorous imprisonment for a period of **15-years**, with the statutory benefit of section 382-B, Cr.P.C. extended in his favour. Muhammad Azam appellant is also directed to pay a sum of **Rs.10,00,000/-** as compensation under section 544-A, Cr.P.C. to the legal heirs of Shahid Imran (deceased),, which shall be recoverable as arrears of land revenue and in default thereof, he shall further undergo simple imprisonment for a period of six months. Muhammad Azam appellant is, however, acquitted of the capital charge concerning the murder of Muhammad Aslam (deceased) as well as the connected charges under sections 324 and 337F(iii) PPC, for allegedly causing a firearm injury to Mst. Bushra Bibi (PW.3); his convictions and sentences on all these specific charges are hereby set aside by extending the substantial benefit of doubt in his favour. Accordingly, **Crl. Appeal No.67344 of 2022** stands **disposed of** to his extent by way of modification in his convictions and sentences in the above manner.

So far as Azmat Naeem appellant is concerned, the appeal in hand is hereby **accepted** to his extent and he is fully and unequivocally **acquitted** of each and every criminal charge leveled against him by the prosecution in this case, by extending the benefit of doubt in his favour.

24. **Crl. Revision No.60054 of 2022**, having become meritless, is hereby **dismissed** as no case for enhancement of sentences is made out.

(Muhammad Tariq Nadeem)
Judge

Announced in open Court on **23-06-2026.**

(Muhammad Tariq Nadeem)
Judge

APPROVED FOR REPORTING.

(Muhammad Tariq Nadeem)
Judge

Signed on 23-06-2026
مقدس